

19PSCV00291 19PSCV00291

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Case Number: 19PSCV00291 Hearing Date: June 26, 2026 Dept: H

Feng v. Wong, et al., Case

No. 19PSCV00291

ORDER ON MOTION

TO SUBSTITUTE ESTATE

Defendant/Cross-Complainant Lone

Oak Fund, LLC's Motion to Substitute Estate of Deceased Decedent and

Cross-Defendant Fai Wong is GRANTED.

Background

Plaintiffs

Zengpeng Feng ("Zengpeng"), Jiaxiang Feng ("Jiaxiang") and Yongxiang Feng ("Yongxiang") (collectively, "Plaintiffs") allege as follows:

Plaintiffs

are Chinese nationals with limited knowledge of English and limited knowledge of the California real estate markets. In or around April 2012, Zengpeng and non-party Zhengjun Wang ("Zhengjun") traveled together to Las Vegas, where they won a significant sum of money gambling. While in Las Vegas, Zengpeng and Zhengjun met Fai Wong ("Wong"), who represented himself as a casino host. Wong told Zengpeng and Zhengjun that they could not legally return to China with their winnings or otherwise transfer the money to China and that they had to invest the money in the United States. Wong represented that he knew of properties in Las Vegas that could be purchased as an investment for approximately the amount of money Zengpeng and Zhengjun had won and that he could handle this transaction for them. Zengpeng provided Wong with \$460,000.00

to invest on his behalf.

Wong

promised to invest the money in properties in Las Vegas, and the first of the properties was purchased on or about May 7, 2012. These properties are currently involved in litigation in Case No. A-18-777837-C (the "Nevada Case"). Zengpeng, and his sons Yongxiang and Jiaxiang, agreed to acquire additional properties, including properties in Southern California, by and through Wong. Wong would recommend a particular property and then, on Wong's instructions, Plaintiffs would transfer funds into accounts controlled by Wong in China.

Wong

and his associates, including his wife Liming Jiang ("Jiang"), would use funds transferred into the account to purchase the recommended property through a now-defunct entity controlled by them (i.e., Golden Ocean Investment, LLC ["Golden Ocean"]) and then have Golden Ocean sell the property to Zengpeng or his sons at inflated prices.

In

2012, Golden Ocean purchased three properties, (1) 14730 Finisterra Place, Hacienda Heights, California (the "Finisterra Property"), (2) 8684 Via Santa Cruz, Whittier, California ("Santa Cruz Property") and (3) vacant land near Via Santa Cruz and La Cuarta Street, Whittier, California ("Vacant Lot") on behalf of Zengpeng, which were titled in Jiaxiang's and Yongxiang's names. Wong, Jiang and their associates took care of the Finisterra and Santa Cruz Properties and the Vacant Lot.

In

August 2014, Wong told Zengpeng that Jixiang should sign a power of attorney so that he could hire a professional property management company to manage the Santa Cruz Property. Jiaxiang signed a power of attorney which was recorded January 29, 2015 (the "2014 Santa Cruz Power of Attorney").

In

2015, Wong told Zengpeng that Yongxiang needed to sign a power of attorney so that he could lease the Finisterra Property out to a tenant. Yongxiang signed a power of attorney which was recorded on November 9, 2015 (the "2015 Finisterra Power of Attorney").

On or

about January 20, 2015, Jiang, as “attorney in fact” for Jixiang, signed a grant deed conveying the Santa Cruz Property from Jixiang to Global Panda Entertainment LLC (“Global Panda”), without Plaintiffs’ knowledge or consent. The grant deed was recorded January 29, 2015 (the “2015 Santa Cruz Grant Deed”). Wong, as manager of Global Panda, signed a Deed of Trust with Absolute Assignment of Leases and Rents, Security Agreement and Fixture Filing (First Priority—to be recorded in Los Angeles County) for the benefit of Lone Oak Fund, LLC (“Lone Oak”) to secure a loan for \$3,660,000.00 (the “2015 Lone Oak Deed of Trust (LA)”), again without Plaintiffs’ knowledge or consent. The 2015 Lone Oak Deed of Trust (LA) encumbered the Santa Cruz Property as well as the Northview Property and Las Palmas Property (the latter two properties which are the subject of other litigations) and was recorded on January 29, 2015.

On or

about January 22, 2015, Wong, as manager of Global Panda, signed a Deed of Trust with Absolute Assignment of Leases and Rents, Security Agreement and Fixture Filing (First Priority—to be recorded in Orange County) for the benefit of Lone Oak to secure a loan for \$3,660,000.00 (the “2015 Lone Oak Deed of Trust (OC)”), without Plaintiffs’ knowledge or consent. The 2015 Lone Oak Deed of Trust (OC) encumbered the Santa Cruz Property, Northview Property and Las Palmas Property and was recorded on January 29, 2015. These loans were paid off.

On or

about December 21, 2016, Wong forged a “Power of Attorney—Special” that was recorded on January 5, 2017 (the “2016 Forged Power of Attorney”); this purported to have been signed by Baohua Wang (“Baohua”), the owner of the Northview and Las Palmas Properties, and appointed Wong as attorney in fact with respect to the Santa Cruz Property, Northview Property and Las Palmas Property. On or about December 27, 2016, Wong, as managing member of Global Panda, signed a grant deed (the “2016 Santa Cruz Grant Deed”) conveying the Santa Cruz Property from Global Panda to Global Travel & Cultural Entertainment (“Global Travel”). The Santa Cruz Grant Deed was recorded on January 4, 2017.

On or

about December 27, 2016, Wong, as managing member of Global Panda and “attorney in fact,” signed a Deed of Trust with Absolute Assignment of Leases and Rents, Security Agreement and Fixture Filing (First Priority—to be recorded in Los Angeles County) (the “2016 Lone Oak Deed of Trust (LA)”) and a Deed of Trust

with Absolute Assignment of Leases and Rents, Security Agreement and Fixture Filing (First Priority—to be recorded in Orange County) (the “2016 Lone Oak Deed of Trust (OC)”) for the benefit of Lone Oak to secure a loan in the amount of \$4,145,000.00; these documents were recorded on January 4, 2017, without Plaintiffs’ knowledge or consent.

On or

about October 31, 2017, Wong, Qun Yang (“Yang”), a member and officer of Global Travel, and their associates forged another Power of Attorney recorded November 13, 2017 (the “2017 Forged Power of Attorney”); this purported to have been signed by Baohua and appointed Yang as “attorney in fact” for the Santa Cruz Property and the Northview Property. On or about November 7, 2017, Yang, as “attorney in fact” for Baohua, signed a grant deed purporting to transfer the Northview Property from Baohua to Global Travel (the “2017 Northview Grant Deed”); this was recorded on November 15, 2017.

On or

about November 7, 2017, Wong, as managing member of Global Travel, signed a Deed of Trust with Absolute Assignment of Leases and Rents, Security Agreement and Fixture Filing (Second Priority—to be recorded in Los Angeles County) for the benefit of Qualfax to secure a loan in the amount of \$300,000.00 (the “2017 Qualfax Deed of Trust”) which was recorded on November 15, 2017, without Plaintiffs’ knowledge or consent.

On or

about January 9, 2019, Qualfax held a foreclosure sale, at which time it obtained a Trustee’s Deed, which was recorded on January 11, 2019 (“2019 Trustee’s Deed”).

Also,

on or about November 4, 2015, Wong, as “attorney in fact” for Yongxiang, signed a Deed of Trust (the “RBB Deed of Trust”) and an Assignment of Rents, for the benefit of Royal Business Bank (“RBB”) to secure a loan for \$1,680,000.00; these documents were recorded on November 9, 2015 against the Finisterra Property without Plaintiffs’ knowledge or consent. Wong, Yang and their associates also forged an Unconditional Limited Guarantee on of about November 3, 2015 wherein Yongxiang purportedly was “guarantor” to secure the loan, again without Plaintiffs’ knowledge or consent.

On or

about June 12, 2018, Wong, Yang and associates forged a grant deed, which purports to convey the Vacant Lot from Jixiang to Global Travel; this was recorded on June 20, 2018, without Plaintiffs' knowledge or consent.

On

August 24, 2020, a "Judgment in Favor of Defendant Royal Business Bank" and a "Judgment in Favor of Defendants Lone Oak Fund, LLC and Qualfax, Inc." were filed.

On May

4, 2021, the Court ordered the case stayed in its entirety.

On May

27, 2022, remittitur was filed (reversing August 24, 2020 judgments and granting Plaintiffs leave to file an amended complaint).

On July

11, 2022, Plaintiffs filed a verified Second Amended Complaint, asserting causes of action against Wong, Jiang, Global Travel, Global Panda, Lone Oak, RBB, Qualfax, Does I-X and Roe Entities I-X for: (1) Quiet Title, (2) Constructive Trust, (3) Equitable Lien, and (4) Preliminary and Permanent Injunction.

On August 26, 2022, Qualfax filed a First Amended

Cross-Complaint ("FACC"), asserting a cause of action against Zengpeng, Jiaxiang, Yongxiang and Roes 11-50 for: Equitable Subrogation/Equitable Lien.

On September 6, 2022, Wong's, Jiang's, Global

Travel's and Global Panda's defaults were entered on Plaintiffs' SAC.

On September 9, 2022, Lone Oak filed a verified cross-complaint,

asserting causes of action against Wong, Jiang, Global Travel, Global Panda, Qualfax, Zengpeng, Jiaxiang, Yongxiang and Roes 1-20 for: (1) Declaratory Relief—Deed of Trust is Valid, (2) Declaratory Relief—Agency and Authority, (3) Declaratory Relief—Ratification and Consent, (4) Unjust Enrichment, (5) Equitable Lien, (6) Judicial Foreclosure, (7) Quiet Title, (8) Fraud, (9) Indemnification, and (10) Attorney's Fees—Tort of Another.

On

December 16, 2022, an "Order Re: Joint Ex Parte Application by All Parties for a Court Order Approving the Substitution of Res from Real Property to Sale

Proceeds from the Anticipated Sale of the Property” was filed.

On

December 28, 2022, RBB filed a cross-complaint, asserting causes of action against Zengpeng, Jiaxiang, Yongxiang, Wong, Jiang, Global Travel and Roes 1-20 for: (1) Declaratory Relief—Deed of Trust is Valid, (2) Declaratory Relief—Agency and Authority, (3) Declaratory Relief—Ratification and Consent, (4) Quiet Title, (5) Equitable Lien, (6) Unjust Enrichment, (7) Judicial Foreclosure, (8) Breach of Guaranty, (9) Breach of Limited Guaranty, (10) Waste, (11) Fraud, (12) Indemnification, and (13) Tort of Another Attorneys’ Fees.

On

October 25, 2023, the Court was advised by the parties that the matter had settled.

On

February 6, 2024, a “Stipulation and Order for Dismissal and for Retention of Jurisdiction Under Code of Civil Procedure Section 664.6” was entered.

On

February 13, 2024, Lone Oak dismissed its cross-complaint against Zengpeng, Jiaxiang, Yongxiang and Qualfax, with prejudice; that day, Qualfax dismissed its FACC, with prejudice and Zengpeng, Jiaxiang and Yongxiang dismissed their complaint against Lone Oak and Qualfax, with prejudice.

On

March 1, 2024, Wong's, Global Travel's, Global Panda's and Jiang's defaults were entered on Lone Oak's cross-complaint.

On

March 5, 2024, Wong's, Global Travel's and Jiang's defaults were entered on RBB's cross-complaint.

On

March 15, 2024, a Default Prove Up Hearing and Order to Show Cause Re: Default Judgment as to Vacant Land came on calendar for hearing; on that date, the Court found that Jixiang is the owner of the subject property and that Global Travel owns no right, title or interest in the property.

On

March 15, 2024, Zengpeng, Jiaxiang and Yongxiang dismissed their complaint against Wong, Jiang, Global Panda, Does I-X and Roes Entities I-X and against Global Travel as to the second through fourth causes of action only, without prejudice.

On

March 28, 2024, an "Order Quieting Title" and "Judgment Quieting Title" were entered.

Legal Standard

"On motion, the court

shall allow a pending action or proceeding against the decedent that does not abate to be continued against the decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest, except that the court may not permit an action or proceeding to be continued against the personal representative unless proof of compliance with Part 4 (commencing with Section 9000) of Division 7 of the Probate Code governing creditor claims is first made." (Code Civ. Proc., § 377.41.)

Discussion

Lone

Oak moves the Court, pursuant to Code of Civil Procedure section 377.41, for an order permitting this action to be continued against the Estate of Fai Wong ("Estate"), deceased.

At the

outset, the motion originally came on calendar for hearing on May 5, 2026; on that date, the Court continued the hearing to June 26, 2026 and instructed counsel for Lone Oak to file and serve a declaration, no later than nine court days prior to the continued hearing date, addressing "proof of compliance with Part 4 (commencing with Section 9000) of Division 7 of the Probate Code governing creditor claims," as required by Code of Civil Procedure section 377.41.

Lone

Oak's counsel Michelle Lee ("Lee") previously represented, and/or the accompanying exhibits reflected, as follows: On November 25, 2025, Lee conducted a public records search on Westlaw regarding Wong. (Lee Decl., ¶¶ 3 and 4, Exh. A). Based on that search, Lee is informed and believes that Wong is

deceased and that his date of death was March 4, 2024. (Id.) On August 12, 2025, Man Sze Jesse Wong was appointed as special administrator for the Estate in Case No. 24STPB08341 (Id., ¶¶ 5 and 6, Exh. B). The Letters of Special Administration expired on December 31, 2025, and no successor personal representative has been appointed. (Id.)

On June

15, 2026, Lee filed (and served via mail and email) a second declaration, addressing compliance with Code of Civil Procedure section 377.41. Lee represents, and/or the accompanying exhibits reflect, as follows: On May 13, 2026, Lee sent an email to Rebecca L. Van Loon ("Van Loon") (i.e., one of the attorneys who appeared as counsel for Man Sze Jesse Wong in Case No. 24STPB08341) and inquired whether the Estate intended to seek reissuance of letters or appointment of a successor representative and whether her office was authorized to accept service of a creditor's claim on behalf of the Estate. (Lee Decl., ¶ 4, Exh. B). On June 9, 2026, Lone Oak filed a creditor's claim in Case No. 24STPB08341, which was accepted for filing by the Probate Court that same day. (Id., ¶ 5, Exh. C). On June 9, 2026, Lone Oak served the creditor's claim and related materials via email to Van Loon, Matthew T. Arvizu ("Arvizu") (i.e., the other attorney who appeared as counsel for Man Sze Jesse Wong in Case No. 24STPB08341), Man Sze Jesse Wong, and other interested persons. Later that same day on June 9, 2026, Arvizu advised that his office did not represent Man Sze Jesse Wong in her capacity as Special Administrator of the Estate and offered to provide Man Sze Jesse Wong with another copy of the Creditor's Claim materials. (Id., ¶ 7, Exh. E). On June 11, 2026, paralegal Kelly K. Lee accepted Arvizu's offer to send another copy to Man Sze Jesse Wong. (Id.)

The Court determines

that Lone Oak has complied with Code of Civil Procedure section 377.41. The motion is granted.

On the Court's own

motion, the Court CONTINUES the Order to Show Cause Re Default Judgment to August 28, 2026, at 8:30 a.m., so Lone Oak can submit a proposed default judgment and new CIV 100 form, to reflect the Estate as a cross-defendant; those documents shall be filed no later than July 20, 2026.